

**Opinion on Reference No.01/2011, filed under Article 186 of
the Constitution of the Islamic Republic of Pakistan, 1973**

Muhammad Ali Mazhar-J

Pursuant to the decision of the Federal Cabinet, the President of Pakistan, in the year 2011, filed a reference under Article 186 of the Constitution of the Islamic Republic of Pakistan, 1973 ("**Constitution**") seeking an opinion in respect of the proceedings of the judicial process in the case of the trial of Shaheed Zulfiqar Ali Bhutto, former Prime Minister of Pakistan (**Mr. Bhutto**).

For the ease of reference, the following index provides an outline of the key topics discussed in the opinion:

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I. Quintessence of Advisory Jurisdiction

2. To begin, it is expedient to reproduce, for the ease of reference, Article 186 of the Constitution as under:

Advisory Jurisdiction

186. (1) If, at any time, the President considers that it is desirable to obtain the opinion of the Supreme Court on any question of law which he considers of public importance, he may refer the question to the Supreme Court for consideration.

(2) The Supreme Court shall consider a question so referred and report its opinion on the question to the President.
[emphasis applied]

3. The spirit and fundamental nature of the advisory jurisdiction under Article 186 accentuates that the President may refer any question of law which is considered to be a matter of public importance to the Supreme Court for its consideration and opinion. This function plays a momentous role in advisory jurisdiction. The foremost wisdom of this jurisdiction lies in enabling the President to seek aid and assistance in the form of an opinion from the Supreme Court on any issue of law concerning public importance, which is the dominant feature of the "Presidential Reference" encapsulated in the Constitution. In my view, while the opinion rendered under advisory jurisdiction may not be binding, it carries significant credence and persuasive value. It is rendered after much deliberation, thoughtfulness, and appreciation of the questions forwarded by the President consistent with the constitutional obligations and judicial propriety. Such opinions ought to be respected with due weight and esteem by all organs of the State. However, concomitantly, questions transmitted for opinion in the reference should not be ambiguous, indeterminate, or inexplicable to avoid the possibility of the Supreme Court returning the reference unanswered.

4. In essence, the scope and existence of advisory jurisdiction represent is a fundamental correlation and relationship between the government and the judiciary. It is the sole pathway for seeking Supreme Court's opinion in certain instances. The Court must remain confined to the proposed questions without making any departure and must keep a tight rein on the reference itself. The Supreme Court may decline to articulate an opinion if the questions framed lack any constitutional significance or public importance. In Reference No. 2 of 2005 (PLD 2005 SC 873), a nine-member bench of this Court rendered an opinion on the draft Bill titled "**HISBA BILL**". The opinion referenced various local and foreign judicial precedents and the insights of eminent jurists on constitutional provisions, and concluded that the opinion on a Presidential Reference is not a decision between parties but entails

an extensive judicial exercise, including evaluation and appreciation of arguments advanced by advocates appearing for summoned parties, and the Court then forms an opinion. It was further expounded that keeping in mind the language used in Articles 189 and 190 of the Constitution, the opinion expressed by the Supreme Court on a Presidential Reference under Article 186 is required to be esteemed by all organs of the State. Thus, it would not be fair to say that the opinion expressed by the Supreme Court on a Presidential Reference under Article 186 of the Constitution has no binding effect.

II. Opinion of Larger Bench

5. On 06.03.2024, the larger bench of this Court delivered its opinion on five questions raised in the Reference filed by the President of Pakistan. The larger bench, by and large, opined that the proceedings of the trial by the Lahore High Court and the appellate judgment rendered by the Supreme Court did not meet the requirements of the fundamental right to a fair trial and due process, enshrined in Articles 4 and 9 of the Constitution, and later guaranteed as a separate and independent fundamental right under Article 10A of the Constitution. It was further opined that the Constitution and the law do not provide a mechanism to set aside the judgment whereby Mr. Bhutto was convicted and sentenced. The said judgment had attained finality after the dismissal of the review petition by this Court, and thus, this Court cannot reappraise the evidence to undo the decision.

6. No doubt, the conviction attained finality after the dismissal of the review petition by this Court. However, in my unfeigned empathy and astuteness, I reckon it my utmost duty to draw attention to the quintessential blemishes and glitches in the murder trial, which blatantly suppressed, devastated, and compromised the doctrine of due process of law and the right to a fair trial.

III. Overview of Murder Trial

7. To articulate my opinion, a selection of indispensable facts about the "**Murder Trial**" is *sine qua non* to be jotted down for

augmentation. To avoid verbosity, I aim to recapitulate the short and snappy minutiae of the murder trial, which forms the nucleus of my opinion. Considering the acute topographies, FIR No.402/74 was registered on 11.11.1974 at Police Station Ichara, Lahore, on the complaint of Mr. Kasuri. After lodging the FIR regarding the assassination of his father, the police carried out the investigation but traced no culprits. Consequently, the investigation was transferred by the Senior Superintendent of Police to the Crime Investigation Agency. Despite the transfer, no suspects of the alleged crime were identified or implicated, and recommendations were made for closure. The report was submitted to the concerned Magistrate and approved *vide* administrative order dated 03.05.1976. Neither the complainant nor any other legal heirs of the deceased challenged the closure of the investigation in the High Court or applied to the prosecution agency for the revival of the case or changes to the investigation officer or agency. Here, the matter could have ended without any further proceedings or investigation, effectively setting it to rest for all practical purposes. However, on one fine morning, the Government of Punjab, of its own accord, appointed a Tribunal to inquire into the incident mentioned in the same FIR without any lawful justification or application from any aggrieved person.

IV. Reinvestigation in a Closed Case.

8. The erstwhile Tribunal, in its report dated 22.02.1975, issued certain directions for further investigation without any logical justification. After the imposition of martial law in the country, the Director of the Federal Investigation Agency ("FIA") resurrected the case on 03.05.1976, which had been closed much earlier. Again, this was done without any lawful justification and appeared to be an attempt to revive the closed case by any means with *mala fide* intentions. The Director of the FIA, more loyal than the king, implicated seven persons, including Mr. Bhutto. A final report under Section 173 of the Code of Criminal Procedure Code, 1898 ("Cr.P.C.") was submitted, wherein two accused persons were cited as approvers. The concerned Magistrate sent the matter to the Sessions Judge for trial on 12.09.1977. All of a sudden, a transfer application was moved by the State to the Acting Chief Justice of the Lahore High Court, who instantaneously transferred the case

to the High Court for trial by a five-member bench headed by him. To conclude, the aforesaid bench, *vide* judgment dated 18.03.1978, awarded the death penalty to Mr. Bhutto. His appeal was dismissed by this Court on 06.02.1979, and though a review petition was filed, it was also dismissed on 24.03.1979. To end the story everlastingly, the death sentence was executed on 04.04.1979.

9. In the safe administration of the criminal justice system in our country, relevant provisions are provided under Cr.P.C. for making arrests, conducting investigations, holding trials, issuing convictions, and executing sentences. Whenever, an Officer In-Charge of a Police Station receives information about an offence, he is required to determine whether the offence is cognizable or non-cognizable. The Investigating Officer plays a crucial role in the administration of the criminal justice system and the constituent of the investigation report and its worth holds plenteous value and has repercussions on the outcome of any criminal case. The Investigating Officer is obligated to investigate the matter from all possible angles, as required by Rule 25.2(3) of the Police Rules, 1934, to ascertain the truth and aim to arrest the real offender, not the innocents. The investigation typically begins with inspecting the crime scene, reconnoitering the circumstances connected to the offence, identifying and arresting the suspect, gathering of relevant evidence (including witness statements), making applications to the Court for recording confessions if any, conducting searches and seizures, carrying out recoveries and identification parades if required, and finally submitting the final report under Section 173, Cr.P.C., after fulfilling all legal requirements. The Investigating Officer must ensure that the provisions of the law are conscientiously followed without any breaches and the investigation is conducted impartially, with the sole aim of uncovering the truth rather than implicating innocents. This impartiality forms the foundational pathway for the prosecution's case. The mere registration of an FIR does not insinuate conviction or proof of guilt. Section 169, Cr.P.C., clearly provides that if, upon investigation, it appears to the Officer In-Charge of the police station, or to the Police Officer conducting the investigation that there is insufficient evidence or reasonable

grounds for suspicion to justify forwarding the accused to a Magistrate, such officer shall, if such person is in custody, release the individual upon executing a bond, with or without sureties, as such officer may direct, to appear, if and when so required, before a Magistrate empowered to take cognizance of the offence on a police report and to try the accused or send him for trial. The case of Norwest Holst Ltd. v. Department of Trade and others [(1978) 3 All ER 280 at 290] held that "in every investigation, there are by and large three different phases. First of all, the administrative phase; next, the judicial phase; and, finally, the executive phase when the orders of the Court or the Tribunal are, if necessary, executed or promulgated. Quite plainly fairness to the suspect demands that he should be given a chance of stating his case. Equally fairness demands that the suspect shall be given a chance of putting his side of the case before the judicial inquiry is over. Fairness to the inquirer demands that during the administrative period he should be able to investigate without having at every stage to inquire from the suspect what his side of the matter may be. Of course, it may be difficult to find out the particular point at which the administrative phase ends and the judicial phase begins". The judgment also quoted a passage from Lord Reid's speech in Wiseman vs. Borneman [(1971) AC 297, at 308], that every public officer deciding whether to prosecute or raise proceedings ought to first decide whether a *prima facie* case is made out or not.

10. Neither does it appear from the record that anyone, including the legal heirs of the deceased, was dissatisfied with the first investigation into the alleged crime, nor is there any indication that they approached the police, the FIA, or the High Court to request a fresh investigation. Additionally, nothing in the record justifies the decision to reinvestigate a closed case. No independent reasoning appears to have been applied to explain why reinvestigation was necessary. Moreover, there is no mention of significant errors or blunders made by the original Investigating Officer, nor any suggestion that evidence was intentionally omitted or manipulated to favour the accused. Similarly, there is no indication that overwhelming evidence was ignored or that reinvestigation was necessary to unearth the truth because the earlier investigation

was so defective or contained such visible and seeming lapses on part of the Investigating Officer that it was rendered inadequate. Even the directions in the Tribunal's order to the investigating agency do not reflect any concrete or strong justification for reinvestigation. Instead, reinvestigation was ordered mechanically without identifying lapses on the part of the Investigating Officer. Neither was it asserted that the earlier investigation was botched, nor was any departmental action proposed against the Investigating Officer if the Tribunal believed that he failed to discharge his statutory duty of conducting a fair and impartial investigation.

11. The purpose of reinvestigation is not to appease influential individuals or to implicate the innocent. Its underlying principle is to unearth the truth where fairness, rectitude, and impartiality demand it. However, this does not mean that reinvestigation should routinely or customarily be ordered *de novo*, after submission of challan/report of closure, without any rational or well-articulated justification. Such orders must not cater to grudges or nefarious designs aimed at dragging the irreproachable or innocent individuals into dire consequences. Reinvestigation cannot be wielded as a tool to favour any influential persons or punish the innocent so casually, callously, or arbitrarily, at the whims of influential and powerful individuals. Manipulated or misused, the garb of reinvestigation is truly a dangerous idea that undermines the integrity of the criminal justice system and poses a serious danger to its administration.

V. Transfer of Case from Sessions Court to High Court

12. According to Section 28 of the Cr.P.C., an offence under the Pakistan Penal Code, 1860 (P.P.C.) may be tried by the High Court, or by the Court of Session or by any other Court by which such offence is shown in the eighth column of the Second Schedule to be triable. Section 31, P.P.C., however, is noteworthy, according to which the High Court may pass any sentences authorised by law. Similarly, a Sessions Judge or Additional Sessions Judge may pass any sentence authorised by law, with the rider that any sentence of death passed by any such Judge shall be subject to confirmation by the High Court. While Section 302 offences are triable by

Sessions Court, as also mentioned in the Schedule-II (Explanatory Note) of the Cr.P.C., as the procedural framework outlined in Section 190, Cr.P.C., states that the Magistrate may take cognizance of any offence upon receiving a complaint of facts which constitute such offence; upon a report in writing of such facts made by any police officer; upon information received from any person other than a police officer, or upon his own knowledge or suspicion, that such offence has been committed which he may try or send to the Court of Session for trial. A Magistrate taking cognizance of an offence triable exclusively by a Court of Session shall, without recording any evidence, send the case to the Court of Session for trial under Section 193, Cr.P.C., wherein it is clearly provided that except as otherwise expressly provided by this Code or by any other law for the time being in force, no Court of Session shall take cognizance of any offence as a Court of original jurisdiction, unless the case has been sent to it under Section 190.

13. The factual matrix in the case decrypts that the case was sent for trial to the Sessions Judge, Lahore, on 12.09.1977. However, on the very next day, a transfer application was filed by the State, which was allowed on the same day by the Acting Chief Justice of the Lahore High Court, the late Justice Maulvi Mushtaq Hussain, who constituted the bench, and the charge was framed on 11.10.1977. Without a doubt, under Section 526 Cr.P.C., the High Court has jurisdiction to transfer a case or itself try it, but with certain conditionalities, for instance: (a) that a fair and impartial inquiry or trial cannot be had in any criminal court subordinate thereto; (b) that a question of law of unusual difficulty is likely to arise; (c) that a view of the place in or near which any offence has been committed may be required for a satisfactory inquiry into a trial of the same; (d) that an order under this section will tend to the general convenience of the parties or witnesses; or, (e) that such an order is expedient for the ends of justice, or is required by any provision of this Code. While exercising this jurisdiction, the High Court may act either on the report of the lower court, or on the application of a party interested, or on its own initiative.

14. It appears beyond any doubt that J. Maulvi Mushtaq Hussain allowed the transfer application in a slipshod manner, even

without notice to the accused persons. Neither did the Court consider the parameters and constituents of Section 526, Cr.P.C., which require consideration before passing an order of transfer of a case, nor did it record in the order how Mr. Bhutto, who was incarcerated and no longer in power, was in a position to influence or manipulate the outcome, or hinder a fair inquiry or trial. Moreover, it was not mentioned what serious question of law of unusual difficulty was likely to arise in the prosecution case, or how the transfer was required for the general convenience of the parties or witnesses, or expedient for the ends of justice. On the contrary, in my view, the order was tainted with malice, seemingly intended to gain control of the prosecution case to stifle or curb the ends of justice and the right to a fair trial which is an inherent and fundamental right of every accused. The Court should not have rubberstamped the State's request for a case transfer without notice to the accused or without judiciously, cautiously, and diligently addressing the grounds raised in the transfer application to determine whether it genuinely made out a case for transfer or if the purpose of the transfer was to cause serious prejudice to the defence. It is evident from the record that Mr. Bhutto not only challenged the transfer order but also objected to the five-member bench trying the case, particularly alleging bias against J. Maulvi Mushtaq Hussain, who was heading the bench. However, all such objections were in vain. Neither the bench members of the High Court ever acknowledged these concerns, nor did this Court give any importance or paid any heed to them. Despite serious objections, J. Maulvi Mushtaq Hussain did not recuse himself from the bench, but continued enthusiastically completing the murder trial.

VI. Allegations of Bias

15. Now, I would like to address the allegations of bias. Various instances are reflected in the record, including altercations and sarcastic remarks from the bench during the trial, which led Mr. Bhutto to believe he could not expect a fair trial or justice. Time and again, he raised allegations of bias and expressed lack of confidence, but the bench, seemingly overenthusiastic, overzealous, or under external pressure, continued the trial. They

awarded the maximum sentence based solely on the testimony of an approver, without any other concrete incriminating or corroborative testament or circumstantial evidence. The bench's approach was unique and, even without considering any mitigating circumstances, appeared predetermined or prejudiced to impose the maximum punishment in a highly dubious case. In my considered view, the personal bias or preconceived notions of the judges unambiguously rendered them incapable of serving independently and fair-mindedly, which undermines the basic limb of the administration of justice and the sacred trust of the masses. When there is an actual probability of bias, the judge ought to recuse themselves, not because they are necessarily biased or incapable of dispensing justice impartially, but because the circumstances might engender a certain restlessness or fear of bias influencing the outcome of a case in the mind of others. In fact, reposing public confidence in the judiciary is the yardstick by which the justice delivery system and its integrity are appraised, including adherence to the doctrine of *ex debito justitiae*. A biased decision inevitably undermines credibility. However, mere apprehension or allegations of bias without any substantial whys and wherefores cannot alone justify recusal. Each judge, guided by his own conscience and sense of right and wrong, must decide whether to sit in a particular case or not. Lord Hewart's aphorism in Rex v. Sussex Justices ([1924] 1 KB 256) aptly applies here: "Justice must not only be done, but must also be seen to be done". Relevant local and foreign judicial precedents which are essentially concentrated on the question of alleging bias are as follows:-

1. Ms. Benazir Bhutto v. The President of Pakistan (1992 SCMR 140). Bias in a Judge is the paralysis, complete or partial, of judicial faculties and therefore the allegation of bias against a Judge would be wholly unfounded unless it be shown that the proceedings held by him were irregular and one-sided or the conclusions reached by him were wrong and reasons given in support thereof erroneous. Bias in judicial matters may be caused by the judgment, order or observations of a Superior Court or it may spring from personal, political, religious, communal, racial, commercial or economic considerations. Ref: Dimes v. The Grand Junction Canal (No.1) and others (1852) H.L.C. 759-794) and Rex v. Sussex Justices (1924) 1 KB 256) & Muhammad Ismail Chowdhury v. Abdul Khaleque Dowdagar and another (PLD 1960 SC (Pak.) 301.

2. Islamic Republic of Pakistan v. Abdul Wali Khan (PLD 1976 SC 57). Mere suspicion of bias, even if it is not unreasonable, is not sufficient to disqualify a Judge. The basis of the disqualification, therefore, is "personal bias or prejudice" of such a nature as would necessarily render a Judge unable to exercise his functions

impartially in a particular case, and this must be shown as a matter of fact and not merely as a matter of opinion.

3. President v. Shaukat Ali (PLD 1971 SC 585). The mere assertion of bias can never be sufficient to disqualify a Judge in hearing a cause or matter. In the absence of any pecuniary or proprietary interest in the subject-matter of the proceeding, it is essential that a real likelihood of bias must be shown.

4. Government of NWFP v. Dr. Hussain Ahmed Haroon (2003 SCMR 104). It is an age-old fundamental principle of law that justice should not only be done but manifestly and undoubtedly it should seem to have been done. To achieve this objective/goal it is of prime importance that a Judge/person equipped with the authority of decision should not be having any sort of personal interest in the outcome of the matter under issue before him. The conduct of the proceedings should not generate any reasonable apprehension in the mind of a person that the deciding officer has harboured any grudge or bias against him.

5. Asif Ali Zardari v. The State (PLD 2001 SC 568). The foremost question is what is 'bias' has been described in Corpus Juris Secundum, Volume X pp. 354 and 355. BIAS. Primarily, a diagonal or slant, especially of a seam, cut, or line across a fabric; and so derivatively, a leaning of the mind; a mental predilection or prejudice; anything which turns a man to a particular course; a particular influential power which sways the judgment; a preconceived opinion; a sort of emotion constituting untrustworthy partiality; bent, inclination, prepossession, propension, or tendency, which sways the? mind toward one opinion rather than another; propensity toward an object, not leaving the mind? indifferent. "Bias" has been held synonymous with "partiality," and strictly to be distinguished from "prejudice". Garner on Administrative Law, 4th Edition at page 122 has also attempted to define bias as a disqualification and in such context observed as follows: "Not only is a person affected by an administrative decision entitled to have his case heard by the agency seized with its determination, but he may also insist on his case being heard by a fair Judge, one free from bias. Bias in this context has usually meant that the adjudicator must have no financial interest in the matter under dispute, but it is not necessarily so limited, and allegations of bias have been upheld in circumstances where there was no question of any financial interest."

6. State of Punjab v. Davinder Pal Singh Bhullar (AIR 2012 SC 364). In respect of judicial bias, the statement made by Frank J. of the United States is worth quoting: "If, however, 'bias' and 'partiality' be defined to mean the total absence of preconceptions in the mind of the Judge, then no one has ever had a fair trial and no one will. The human mind, even at infancy, is no blank piece of paper. We are born with predispositions Much harm is done by the myth that, merely by..... taking the oath of office as a judge, a man ceases to be human and strips himself of all predilections, becomes a passionless thinking machine." The principle in these cases is derived from the legal maxim *nemo debet esse iudex in causa propria sua*. It applies only when the interest attributed is such as to render the case his own cause. This principle is required to be observed by all judicial and quasi-judicial authorities as non-observance thereof, is treated as a violation of the principles of natural justice. (Vide: *Rameshwar Bhartia v. The State of Assam*, AIR 1952 SC 405; *Mineral Development Ltd. v. The State of Bihar & Anr.*, AIR 1960 SC 468; *Meenglas Tea Estate v. The Workmen*, AIR 1963 SC 1719; and *The Secretary to the Government, Transport Department, Madras v. Munuswamy Mudaliar & Ors.*, AIR 1988 SC 2232).

7. Gullapalli Nageswararao etc. v. The State of Andhra Pradesh and others (AIR 1959 SC 1376). It is one of the fundamental principles of judicial procedure that the person or persons who are entrusted

with the duty of hearing a case judicially should be those who have no personal bias in the matter. In *Ranger v. Great Western Ry. Co.*(1) Lord Cranworth, L.C., says: 'A judge ought to be, and is supposed to be, indifferent between the parties. He has, or is supposed to have, no bias inducing him to lean to the one side rather than to the other. In ordinary cases it is just ground of exception to a judge that he is not indifferent, and the fact that he is himself a party, or interested as a party, affords the strongest proof that he cannot be indifferent.'

8. Ranjit Thakur v. Union of India and others (AIR 1987 SC 2386). The test of real likelihood of bias is whether a reasonable person, in possession of relevant information, would have thought that bias was likely and is whether respondent was likely to be disposed to decide the matter only in a particular way. It is the essence of a judgment that it is made after due observance of the judicial process; that the Court or Tribunal passing it observes, at least the minimal requirements of natural justice, is composed of impartial persons acting fairly and without bias and in good faith. A judgment which is the result of bias or want of impartiality is a nullity and the trial "coram non-judice."

9. Bhajan Lal, Chief Minister, Haryana v. M/s. Jindal Strips Ltd. & Ors. (1994) 6 SCC 19. Bias is the second limb of natural justice. Prima facie no one should be a judge in what is to be regarded as 'sua causa', whether or not he is named as a party. The decision-maker should have no interest by way of gain or detriment in the outcome of a proceeding. Interest may take many forms. It may be direct, it may be indirect, it may arise from a personal relationship or from a relationship with the subject-matter, from a close relationship or from a tenuous one.

10. Justice P.D. Dinakaran v. Hon'ble Judges Inquiry Committee (2011) 8 SCC 380. Nemo debet esse judex in propria causa. This principle consists of the rule against bias or interest and is based on three maxims: (i) No man shall be a judge in his own cause; (ii) Justice should not only be done, but manifestly and undoubtedly be seen to be done; and (iii) Judges, like Caesar's wife should be above suspicion. The first requirement of natural justice is that the Judge should be impartial and neutral and must be free from bias... He must be in a position to act judicially and to decide the matter objectively. A Judge must be of sterner stuff. His mental equipoise must always remain firm and undetected. He should not allow his personal prejudice to go into the decision-making.

11. A.K. Kraipak v. Union of India (AIR 1970 SC 150). The real question is not whether he was biased. It is difficult to prove the state of mind of a person. Therefore what we have to see is whether there is reasonable ground for believing that he was likely to have been biased. We agree with the learned Attorney General that a mere suspicion of bias is not sufficient. There must be a reasonable likelihood of bias. In deciding the question of bias we have to take into consideration human probabilities and ordinary course of human conduct.

12. Davidson v. Scottish Ministers [2004] UKHL 34 [House of Lords]. In *Porter v Magill* [2001] UKHL 67, [2002] 2 AC 357, 494, paragraph 103, my noble and learned friend Lord Hope of Craighead expressed the test in terms accepted by the Second Division and by both parties to this appeal- "The question is whether the fair-minded and informed observer, having considered the facts, would conclude that there was a real possibility that the tribunal was biased."

13. Webb & Hay v. R [1993] HCA 30 [High Court of Australia]. When it is alleged that a judge has been or might be actuated by bias, this Court has held that the proper test is whether the fair-minded people might reasonably apprehend or suspect that the judge has prejudged or might prejudice the case. In considering the merits of the test to be applied in a case where a juror is alleged to be biased,

it is important to keep in mind that the appearance as well as the fact of impartiality is necessary to retain confidence in the administration of justice. Both the parties to the case and the general public must be satisfied that justice has not only been done but that it has been seen to be done.

14. R v. Sussex Justices, ex parte McCarthy [1923] All ER 233 [House of Lords]. It was of fundamental importance that justice should not only be done, but that it should also be manifestly seen to be done; the question was not whether the acting clerk, when with the justices, made any observation or offered any criticism which he could not properly make or offer, but whether he was so related to the case by reason of the civil action as to be unfit to act for the justices in the criminal proceedings, and the answer to that question depended, not on what was actually done, but on what might appear to be done; what he did might have created a suspicion that there had been an improper interference with the course of justice; and, therefore, the conviction of the applicant must be quashed.

15. R v. Bow Street Metropolitan Stipendiary Magistrate, ex parte Pinochet Ugarte (No. 2) [1999] 1 All ER 577 [House of Lords]. The contention is that there was a real danger or reasonable apprehension or suspicion that Lord Hoffmann might have been biased, that is to say it is alleged that there is an appearance of bias not actual bias. The fundamental principle is that a man may not be a judge in his own cause. This principle, as developed by the courts, has two very similar but not identical implications. First it may be applied literally: if a judge is in fact a party to the litigation or has a financial or proprietary interest in its outcome then he is indeed sitting as a judge in his own cause. In that case, the mere fact that he is a party to the action or has a financial or proprietary interest in its outcome is sufficient to cause his automatic disqualification. The second application of the principle is where a judge is not a party to the suit and does not have a financial interest in its outcome, but in some other way his conduct or behaviour may give rise to a suspicion that he is not impartial, for example because of his friendship with a party. This second type of case is not strictly speaking an application of the principle that a man must not be judge in his own cause, since the judge will not normally be himself benefiting, but providing a benefit for another by failing to be impartial.

16. Taylor & another v. Lawrence & another [2002] EWCA Civ 90 [Court of Appeal, Civil Division]. For the purpose of applying the test for apparent bias, namely whether in the all the circumstances a fair-minded and informed observer would be led to conclude that there was a real possibility that the tribunal was biased, the informed observer could be expected to be aware of the legal traditions and culture of the English jurisdiction, and accordingly he would be aware that in the ordinary way contacts between the judiciary and the legal profession should not be regarded as giving rise to a possibility of bias.

VII. Doctrine of Natural Justice and Due Process of Law

16. In our history, it was not rare but rather the first murder trial conducted by the High Court, which was unique in that it was decided by a bench of five likeminded judges, including the then Acting Chief Justice, who unanimously agreed to award the death penalty. I am also mindful of the turn of phrase, "the accused is the favourite child of law". The substratum of this concept is based on the farsightedness and prudence that it is better to let a

hundred guilty persons be acquitted than to convict one innocent or that it is better to run the risk of sparing the guilty than to condemn the innocent. Reliance is placed on the principles elucidated in my judgment, Muhammad Riaz Vs. Khurram Shehzad (2024 SCMR 51). The *raison d'être* is to assess and scrutinize whether the police and prosecution have performed their tasks accurately and diligently in apprehending and exposing the actual culprits or whether they dragged innocent persons into the crime due to a defective or botched-up investigation, depriving the victim of justice. The philosophy of this phrase, though, does not imply that the Court should grant any unwarranted favours, indulgences, or preferential treatment to the accused. Rather, it ensures a fair-minded and unbiased sense of justice in all circumstances, as a safety gauge to maintain an evenhanded right of defence and a fair trial, thereby complying with the due process of law and reinforcing the renowned doctrine, "innocent until proven guilty". However, if the prosecution case's background or chronicle is analyzed, it strongly suggests that Mr. Bhutto was not treated as the "favorite child of law" but rather as an "unfavourite child of law".

17. The personal bias, prejudice mind or jaundiced eye of the judges tarnished and contaminated the framework of entire trial and the judgment, which tantamount to grave violation of the principle of natural justice and it also enfeebles the elementary foundation of the administration of justice which is sacrosanct for the faith and conviction of the masses. To enjoy the protection of law and to be treated in accordance with the law is the inalienable right of every citizen. The purpose of Article 4 of the Constitution is to ascribe and integrate the doctrine of equality before the law or equal protection of the law. No action detrimental to the life and liberty of any person can be taken without due process of law. The principles of natural justice require that the delinquent be afforded a fair opportunity to converge, explain, and contest before being found guilty or condemned without any bias or prejudice of the Courts and judges. The principles of natural justice and the doctrine of due process are not new phenomena but have long been encapsulated as a sacred obligation of every court and tribunal to follow religiously in all matters, whether civil or

criminal, to ensure a fair trial. The right to a fair trial has now been explicitly enshrined in our Constitution by virtue of the 18th Constitutional Amendment in the shape of Article 10-A and in case of apparent bias as done in this case, the accused could not expect right to fair trial. [Reference can be made to some judgments authored by me, such as Junaid Wazir v. Superintendent of Police (2024 SCMR 181), Federation of Pakistan v. Zahid Malik (2023 SCMR 603), Usman Ghani v. The Chief Post Master, GPO Karachi (2022 SCMR 745), Capital Development Authority v. Shabir Hussain (2022 SCMR 627), Raja Muhammad Shahid v. The Inspector General of Police (2023 SCMR 1135), Muhammad Yaseen v. Province of Sindh (2024 PLC(CS) 111), Government of Balochistan v. Ghulam Rasool (2024 SCMR 1155), and Inspector General of Police, Quetta v. Fida Muhammad (2022 SCMR 1583).

VIII. Evidence of the Approver

18. I cannot ignore another crucial aspect, which is an acid test for considering and appreciating the evidence of an approver: whether their testimony is trustworthy or not. To ensure the safe, effective, and efficient administration of the criminal justice system, certain norms and yardstick are to be followed. The Court must first be satisfied that the testimony of the approver has been adequately corroborated to avoid a conviction based on weak or tainted evidence. Each case has its own facts. No doubt, an approver may be a competent witness, but their evidence requires substantial corroboration regarding the crime, the identity of each accused, and corroboration through independent and reliable evidence. The settled rule of practice is not to convict any accused on the basis of any vicious or venomous investigation. Therefore, the evidence of an approver must be appreciated with great care and caution and not treated as gospel truth. It would not be incongruous to emphasize here that under Section 114 of the Evidence Act, 1872, which is analogous to Article 129 of the Qanun-e-Shahadat Order, 1984, the Court may presume the existence of any fact it considers likely to have happened, having regard to the common course of natural events, human conduct, and public and private business in their relation to the facts of the particular case. However, the illustration provided in clause (b) distinctly conveys "that an

accomplice is unworthy of credit, unless he is corroborated in material particulars", an important factor that was also not considered when giving credence to the evidence of the approver.

IX. Confirmation of Death Sentence

19. If the death sentence is awarded to an accused by the Court of Session, the proceedings must be submitted to the High Court under Section 374, Cr.P.C., and the sentence cannot be executed unless confirmed by the High Court. Under Section 376, Cr.P.C., when a murder reference is submitted by the Court of Session under Section 374, the High Court may confirm the sentence, or pass any other sentence warranted by law, or may annul the conviction, and convict the accused of any offence of which the Sessions Court might have convicted him, or order a new trial on the same or an amended charge, or may acquit the accused person, provided that no order of confirmation shall be made until the period allowed for preferring an appeal has expired, or, if an appeal is presented within such period, until such appeal is disposed of. For all intent and purposes, one thing is clear beyond any shadow of doubt: confirmation of a death sentence by the High Court is only required if the punishment is awarded by the Court of Session and a murder reference is submitted to comply with the letter of law. However, in this case, the death penalty was awarded by a five-member bench of the High Court, so there was no need for confirmation by any lower, or similar, or even larger bench of the same High Court. According to the exactitudes of Section 374, Cr.P.C., a murder reference may be sent by the Court of Session for confirmation, and the role of the High Court as provided under Section 376 Cr.P.C. cannot be read in isolation. It is contingent upon the murder reference sent by the Court of Session for confirmation under Section 374, Cr.P.C. Since the murder trial was conducted by the High Court itself, which was undoubtedly a rare example, no further confirmation was required upon conviction by the High Court, in accordance with the provisions of Section 376, Cr.P.C.

X. Right of Appeal

20. Had the murder trial been conducted by the Court of Session and the death penalty awarded, Mr. Bhutto could have appealed before a divisional bench of the Lahore High Court. However, since the trial was conducted by the High Court itself, his right to appeal in the High Court was forfeited. To address such situations, the framers of the Constitution wisely provided for a direct appeal to the Supreme Court under sub-article (2) (b) of Article 185 of the Constitution in cases where the High Court withdraws a case for trial before itself from a subordinate court and convicts the accused. Likewise, the prerequisites of the appellate jurisdiction of the Supreme Court are further delineated in the sub-article (3) of Article 185, which states that an appeal to the Supreme Court from a judgment decree, order, or sentence of a High Court in a case to which clause (2) does not apply shall lie only if the Supreme Court grants leave to appeal. What normally happens? When the death penalty awarded by the Court of Session is confirmed by the High Court in a murder reference and the appeal of the convict is dismissed by the High Court while maintaining the judgment awarding the death penalty, the Supreme Court, in order to ensure the safe administration of justice, typically grants leave to appeal and provides ample opportunity for hearing in order to reevaluate and revisit whether the death penalty is rightly awarded or not. However, in the case of Mr. Bhutto, due to the direct appeal being preferred in the Supreme Court, at least one sure-shot expected right of appeal with the leave of this Court was lost, and the solitary remedy or opportunity that remained in the playing field was to move a review petition alone after dismissal of Appeal by this Court.

XI. Interviews in Print and Electronic Media

21. Last but not least, the reference sent by the President of Pakistan is also structured and unfolded in paragraph 9, where the late Justice Nasim Hasan Shah, former Chief Justice of Pakistan, in his interviews on print and electronic media, admitted that the decision regarding Mr. Bhutto's appeal was made under coercion. This admission leaves no doubt in the mind of a

sane and prudent person that it was a judicial murder and such admission constitutes a violation of his oath. According to the chronicles, J. Nasim Hasan Shah was appointed as an Ad Hoc Judge of the Supreme Court on 18.05.1977. The Lahore High Court delivered its judgment against Mr. Bhutto on 18.03.1978; the Supreme Court decided his appeal on 06.02.1979; the review petition was dismissed on 24.03.1979; and to close the chapter, the death penalty was executed on 04.04.1979. J. Nasim Hasan Shah retired on 14.04.1994, but was first interviewed by journalist Mr. Suhail Warraich in 1996, which interview was published in Jang Magazine. Another journalist/host, Mr. Iftikhar Ahmed, interviewed him on 03.12.2003 for his TV show, aired on Geo TV Network. After laying down the robes of his office, his conscience awakened and forced him to make disclosures through print and electronic media. In both interviews, J. Nasim Hasan Shah revealed his own views and some other relevant facts. Though he retired in April 1994, he made certain revelations years later that added fuel to the fire and were also incorporated in the Presidential Reference as eye-openers. The remorse, confession, or admission of wrongness in the decision came much after the die was cast. It is quite a common phenomenon that poetry or its verses have multiple meanings, interpretations, or even double entendres, but quite fitting for the belated disclosures made in the interview under discussion, I wish to dedicate the following rhymes of the famous poet Dagh Dehlvi, which seems to match the situation:

نہ جانا کہ دنیا سے جاتا ہے کوئی
بہت دیر کی مہرباں آتے آتے

22. According to the manuscript and DVD produced in Court during the hearing of this Reference, J. Nasim Hasan Shah expressed regret over the decision and admitted that Mr. Bhutto's punishment could have been reduced. He also revealed that some of the judges were under external pressure. J. Nasim Hasan Shah confessed in an interview with Iftikhar Ahmed, televised on Geo TV's programme "Jawab De". According to the gist of the interview,

J. Nasim Hasan Shah stated that it was J. Maulvi Mushtaq Hussain's unjustness (*zyaadati*), as he was a very strong person and an enemy of Mr. Bhutto. He said that it would have been better if he had not been on the case. When the host asked if he still could have written a dissenting note, J. Nasim Hasan Shah replied in the affirmative, but explained that there was some weakness on his part as well as on the part of Mr. Bhutto's chief defense attorney, Mr. Yahya Bakhtiar, as the latter had somewhat annoyed the judges. The host further pointed out that while Mr. Yahya Bakhtiar might have annoyed the judges, J. Nasim Hasan Shah himself admitted that Mr. Bhutto should have received the benefit of doubt. J. Nasim Hasan Shah again responded in the affirmative. The host then asked if Pakistan's history would have been different today had he written a dissenting note, to which J. Nasim Hasan Shah responded that he does not know if it would have been different, but at least Mr. Bhutto's life might have been spared. He expressed regret about the situation, noting that Mr. Yahya Bakhtiar seemed unwilling to argue against the sentence or mitigating circumstances. Mr. Nasim Hasan Shah said that, as a human, a certain level of detachment occurs, but the role of the lawyer is to win the judge's favor, and in this case, the counsel had annoyed the judges. The disclosures made in the interview, though belated, not only blew the whistle on the biases involved but also pierced the veil of the entire trial and conviction, exposing blatant violations of fair trial principles with the complicity of the judges conducting the trial.

XII. Mitigating Circumstances

23. A judge is not supposed to be influenced by appeasement or flattery, nor should they harbor malice or venom against any party while discharging their sacred duty of imparting justice in accordance with the law. The conversion of a death penalty into life imprisonment does not equate to a clean chit for the convict; the punishment remains intact, albeit with a modified quantum. It is astonishing that, according to aforementioned interview excerpt, the judges of this Court, while hearing the appeal of Mr. Bhutto, were anxiously waiting for arguments on the quantum of sentence but felt annoyed by the counsel for the appellant. The tolerance

and forbearance of judges must not be so fragile or touchy as to make them easily annoyed during the hearing of a case, which is a sacred duty and trust. If a judge becomes annoyed with a litigant or their advocate in an unruly manner and loses their patience, control, or peace of mind, it becomes difficult for them to impart justice in accordance with the law. Therefore, judges should remain calm, be good listeners, and instead of arguing themselves, which is the core function of lawyers, they must allow lawyers the opportunity to present their cases and arguments. According to the details of the interview, the judges hearing the appeal were annoyed, and if this was so, then of course, the possibility of an independent application of mind was remote. Decisions made in haste or anger are not only contrary to the basic norms of justice under the law of the land, but also violate the standards set forth in the injunctions of Islam for the administration of justice. Normally, in appeals filed before the Supreme Court in cases where the High Court has confirmed the death penalty, this Court, in order to ensure the safe administration of justice, not only grants leave but, at times, considers mitigating circumstances, altering the punishment without specific arguments. Sometimes, the Court even hints at this line of argument.

24. In the judgment of the Review Petition Zulfikar Ali Bhutto versus The State (PLD 1979 Supreme Court 741), this Court recorded submissions by Mr. Yahya Bakhtiar that, even if the petitioner's conviction were maintained, it was a fit case for the lesser penalty under Section 302 of the P.P.C., read with Sections 109 and 111, as the petitioner was guilty only of abetment and was not present at the scene of the murder. However, these arguments were conveniently set aside on the ground that they had not been raised during the hearing of the appeal. It was further articulated in the judgment of the review petition that during the hearing of the appeal the question of sentence was very much present before the Court, and it was the duty of the learned counsel for the petitioner to raise such points during that time, but the counsel was more focused on seeking acquittal than pleading for mitigation of the sentence.

25. In my opinion, almost in all cases where appeals are filed against confirmation of the death penalty, no advocate directly requests a conversion of the sentence to life imprisonment. Instead, they strive for a fair acquittal for their client, which is the professional duty of every lawyer. Simultaneously, the appellate Court, with its sense of right and wrong, always has inherent jurisdiction to affirm, set aside, or modify sentences. Even when dismissing an appeal and maintaining a conviction, the Court may alter or convert the sentence from death to life, or to a lesser punishment, to do complete justice, particularly when the punishment does not seem commensurate with the gravity of the charge, the role attributed to the convict, or in cases of doubt that a maximum punishment may not be justified. Despite the established bias and grave violations of natural justice and due process in the trial and conviction, the punishment in this case was maintained. The matter did not end here, but the Court also missed the train and failed to consider mitigating circumstances, despite overwhelming material on record which could have justified an acquittal or, at the very least, a conversion of the death penalty to life imprisonment. This omission was quite tragic, atrocious, and reprehensible.

26. Though this Court rendered its opinion on 06.03.2024, almost after 13 years, it may be said, better late than never. In my view, there was no plausible justification to delay the opinion on the Presidential Reference. I am at a loss as to why it was preserved in cold storage, left hanging, and why the hearing was not commenced immediately when the questions were framed by the respected bench of this Court. Anyhow, دیر آید درست آید. It is an essential limb of civil and criminal administration of justice that "justice delayed is justice denied," which virtually means that cases, whatever they may be, should not be delayed or protracted indefinitely. Courts should decide matters within a reasonable period of time, as unjustified delays can emasculate fairness and render justice inconsequential or of little worth to the parties involved. On the other hand, another maxim, "justice hurried is justice buried," also has far-reaching implications, accentuating that undue haste or a compromise on natural justice and due process may also prejudice the rights of the parties. In such

situations, the possibility of injustice cannot be ruled out. The best course to avoid the adverse consequences of both the aforesaid legal aphorisms is to maintain a proper balance in the court docket, with a measured pace. More importantly, cases should not be delayed purposefully due to their profile or significance, as happened with this Reference, which awaited its long-pending turn for an opinion.

XIII. Doctrine of repentance

27. Another important factor that cannot be overlooked is that Question No. 4 of the Presidential Reference framed by this Court had a direct nexus with the doctrine of repentance. For ease of reference, it is reproduced as under: -

“Whether the decision in the case of murder trial against Shaheed Zulfiqar Ali Bhutto fulfills the requirements of Islamic laws as codified in the Holy Quran and the Sunnah of the Holy Prophet (SAW)? If so, whether present case is covered by doctrine of repentance specifically mentioned in the following Suras of Holy Quran:

(a) Sura Al-Nisa: verses 17 & 18 Sura Al-Baqara: verses 159, 160 and 222 Sura Al-Maida: verse 39 Sura Al-Aaraaf: verse 153 Sura Al-Nehal verse 119 Sura Al-Taha: verse 82 as well as (b) Sunan Ibn-e-Maaja, Chapter 171, Hadith No. 395.

What are effects and consequences of doctrine
Re: Repentance”

28. No opinion was rendered by this Court on Question No. 4, which was left unanswered for the valid reason that no assistance was provided on this question. Since this question on the doctrine of repentance was framed with reference to various verses of the Holy Quran, forming a substantial segment of the Presidential Reference, I feel it should not remain untouched or unanswered. Repentance is expressed in Arabic as “*taubah*,” which is a fundamental precept of the teachings of Islam. It involves the confession of sins, remorse for past wrongdoings, and a pledge to refrain from them in the future. Islam prescribes that repentance entails giving up the sin immediately, regretting what happened in the past, resolving not to go back to sinning, restoring others’

rights or property, and repenting before the agony of death [Ref: <https://islamqa.info/en/answers/14289/how-to-repent-in-islam#:>]. One of the wisdoms of repentance is that the believer experiences real regret and turns to Allah without wasting any time and strives not to repeat that mistake. Therefore, he repents in a true and sincere manner. He repents and keeps his word that he will remain on the right path until the end of his life [Ref: <https://www.arabnews.pk/islam-perspective/news/841561>]. 'Allama Ibn 'Abidin al-Shami, a renowned jurist, stated that Muslims should emulate the Prophet's example by following his teachings, and should not try hard to find wrongdoings. We must also strive to protect the excellent reputation of the Last Messenger of Almighty Allah and abide by what he did, accepting the repentance of one who repents. As he emphasized, "it is not for us to impose punishments and other means of deterrence on the basis of our personal inclinations. Rather, we are bound to act on what appears to be the law of our Prophet (peace and blessings of Allah be upon him)" [Ref: Zubair Saeed Sabri v. The State (PLD 2024 SC 681)].

29. The unresolved question in my introspection is why the question regarding the doctrine of repentance was framed by this Court? Who had to or has to repent for the unfair and biased trial? Was it the departed souls who tried the case in the High Court? Those who heard the appeal and review? The bench that entertained and framed the question? Or the bench members who rendered their opinion years after the Reference was instituted? This Court unanimously noted various lapses and biases in the High Court's murder trial, ultimately concluding that the proceedings of the trial by the Lahore High Court and the appeal by the Supreme Court failed to meet the constitutional requirements of a fair trial and due process enshrined in Articles 4, 9, and later guaranteed as a separate and independent fundamental right under Article 10A of the Constitution. In my view, not only it demonstrates some sought of remorse though not explicitly articulated but it also implies a recognition of repentance for the failure to ensure a fair trial and due process, even as Question No. 4 of the Presidential Reference remains unanswered or undecided.

30. I wrap up this opinion with the poignant verses of Mirza Ghalib (Mirza Asadullah Baig Khan):

کی مرے قتل کے بعد اس نے جفا سے توبہ
ہائے اس زود پشیمان کا پشیمان ہونا

31. The office is directed to report this opinion through proper channel to the worthy President of Pakistan in terms of Article 186 of the Constitution of the Islamic Republic of Pakistan, 1973.

Islamabad
Dated: 06.03.2024
Approved for reporting